

**FEDERAL MARITIME COMMISSION
WASHINGTON, D.C**

WAY 2 GO CARGO CORP.;

DOCKET NO.: 25-14

Complainant

v.

OAK WAY CARGO, LLC,

Respondent.

**RESPONDENT'S RESPONSE TO COMPLAINANT'S MOTION TO MODIFY
SCHEDULING ORDER DEADLINES**

Respondent, OAK WAY CARGO, LLC ("Respondent" or "Oak Way"), by and through the undersigned counsel, files this Response in Opposition to Complainant, Way 2 Go Cargo Corp.'s Motion to Modify Scheduling Order Deadlines (the "Motion" or "Motion to Modify Deadlines") filed July 22, 2026, and states:

I. The Commission Should Determine Whether to Adjudicate the Availability of Reparations Before Adjudicating the Motion to Compel

Following the July 6, 2026, Status Conference, Respondent's Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way2Go Cargo Corp., and Extend Case Deadlines (the "MTC") was held in abeyance so that a decision could be made about whether the availability of reparations in this case could be determined as a legal matter before additional discovery on the issue of reparations is ordered. *See* July 6, 2026, Order Following Status Conference. Complainant's Motion to Modify Deadlines does not address this threshold issue except to argue that any briefing schedule by which the availability of reparations

might determined before additional discovery is permitted would result in delay. The Complainant ignores that a determination of the availability of reparations before additional discovery on the issue of reparations might eliminate or, at least, narrow the issues to be determined in this case and thereby save the parties and the Office of Administrative Law Judges significant time and resources. Even if the Administrative Law Judge does not agree with the briefing schedule proposed by Respondent, the Complainant's argument that *any* briefing schedule would be too long should be rejected. Therefore, it should be ordered that the issue of the availability of reparations be briefed and determined prior to additional discovery on the issue of reparations and that the MTC shall remain in abeyance until such determination has been made.

II. Complainant's Attempt to Reargue the MTC Must be Rejected

Although titled as a Motion to Modify Scheduling Order Deadlines, much of the Complainant's Motion is, in substance, a second attempt to argue against Respondent's MTC. This attempt must be rejected.

In its original Response to the MTC filed on June 30, 2026, Complainant did not dispute the fact that its corporate representative admitted during her May 28, 2026, deposition that she was not prepared to answer questions about reparations, a topic that had been properly noticed for discussion, because Complainant's reparations analysis had not been completed. Consistent with this fact, Complainant acknowledged that in light of its willingness to supplement its discovery responses, the

case schedule should be extended to allow an additional 22 days to complete discovery. *See* Response to MTC at ¶ 17.

In its new Motion, Complainant now argues that no new discovery on reparations should be permitted on the grounds that the discovery deadline has passed *despite its having only just provided, for the first time, information about its reparations claim*. The Complainant's original acknowledgment—that additional discovery on reparations is appropriate in light of Complainant's late disclosure of its reparations analysis—should be seen as the more persuasive one.

III. The MTC is not Untimely

Complainant claims that the time for a motion to compel the completion of the deposition of its corporate representative on the issue of reparations has passed. This claim must be rejected because it is not supported by the relevant facts or any applicable rule.

The Deposition of Complainant's Corporate Representative, Elisa Delphino, was scheduled for May 28, 2026. *See* Appendix to the MTC at Exhibit E. The Complainant's reparations and their causation was a properly noticed topic designated for inquiry during the deposition. *Id.* at RE 052, topic #9. At no point prior to the deposition did Complainant advise the Respondent that its representative would not be able to provide testimony about Complainant's reparations for any reason. When Ms. Delphino was asked about Complainant's reparations, she explained that she could not answer because the Complainant's reparations analysis

was not yet complete. However, Ms. Delphino represented that she expected the reparations analysis to be finished within two weeks.

Immediately following the May 28 deposition, the undersigned met and conferred with counsel for Complainant, Jennifer Roldan. During the conference, Ms. Roldan advised that she had no reason to think that Complainant's reparations analysis would not be completed within two weeks as represented by Ms. Delphino. In reliance upon Ms. Delphino's and Ms. Roldan's representations, on May 29, 2026, Respondent joined in the parties' Fourth Motion to Extend Sheduling Order Deadlines, which shought to extend of the deadline to complete discovery to June 19, 2026. On June 1, 2026, the joint motion was granted and the dedaline to complete discovery was so extended.

On June 12, 2026, exactly two weeks and one day after the May 28 deposition, the undersigned again conferred with Ms. Roldan via zoom, who advised that Way 2 Go Cargo Corp. would provide its reparations information by June 17, 2026. No such information was provided by that date.

On June 23, 2026, Respondent filed the MTC. *See* MTC.

On July 15, 2026, Respondent, for the first time in these proceedings, was served with information about the reparations being sought by Complainant. *See* Appendix to Respondent's Statement in Compliance with Order Following Status Conference at Exhibit A.

The foregoing demonstrates that Respondent has deligently pursued the discovery it seeks to compel and that its MTC was timely filed. Complainant cites no rule or

other authority to suggest that a motion to compel discovery is untimely merely because it was filed after the deadline for completion of the discovery, particularly when the discovery request itself was made sufficiently in advance so that compliance was required before the deadline. Notably, the Administrative Law Judge's July 31, 2025, Initial Order filed in these proceedings provides, "[c]ompliance with the date set for completion of discovery requires that the parties serve discovery requests sufficiently in advance of the discovery cutoff so that all responses and objections are due on or before that date." *See* July 31, 2025 Initial Order at p. 4 at ¶ 13. All of the discovery that Respondent seeks to compel through the MTC was sought well in compliance with this provision. The MTC is not untimely.

IV. Respondent is not Responsible for Complainant's Delay in Completing its Reparations Analysis

Complainant goes to great pains to argue that its delay in the provision of information about its claimed reparations was Respondent's fault. This claim is without support and must be rejected.

In its answers to Respondent's interrogatories about reparations, Complainant writes, in pertinent part:

Complainant seeks reparations under the following alternative measures of damages:

a) Diverted funds and payments received by Respondent from shipments initiated by Complainant. The amount of diverted funds and payments presently identified is \$707,264.46. This calculation is derived from Respondent's own spreadsheet identifying shipments originated by Complainant that were subsequently diverted to, completed by, and invoiced through Respondent. Complainant verified each shipment by cross-referencing Respondent's spreadsheet with the corresponding invoices and related documents produced during discovery.

...

b) Alternatively, Complainant calculates its lost profits for those diverted shipments at \$439,772.86. This amount was derived from Respondent's own business records, including shipment spreadsheets and financial documents produced during discovery. The calculation aggregates the revenues associated with the diverted shipments and deducts Respondent's reported expenses, consistent with the testimony of Respondent's corporate representative that Respondent incurred approximately \$200,000 in expenses related to those shipments.

See Appendix to Respondent's Statement in Compliance with Order Following Status Conference at Exhibit A (RE 007). All of the documents and information upon which Complainant claims to have relied on were produced to Complainant by no later than May 29, 2026. In fact, all of the invoices and other records of monies received relating to the relevant shipments were produced to Complainant by Respondent's prior counsel before his withdrawal in March 19, 2026. Notably, Complainant never requested the production of Respondent's records of the expenses it incurred relating to the shipments.

Although Respondent did voluntarily produce an additional spreadsheet of its own calculations on June 12, 2026, not June 16, Complainant did not rely on that spreadsheet in the computation of its reparations. Complainant's claimed reparations bear no resemblance whatsoever to Respondent's calculations provided on June 12. A true and correct copy of Respondent's spreadsheet calculations (with totals added by counsel for ease of reference) and the June 12 email producing the same (without totals) are attached as Composite Exhibit A to the Appendix to this Response. In fact, during a conference call with the undersigned on July 21, 2026, Ms. Roldan made it

clear that, in her view, the calculations in Respondent's spreadsheet were unreliable and therefore not included in Complainant's reparations calculations.

Accordingly, the Complainant's delay in the finalization and production of its reparations analysis is not the result of any failure by Respondent to comply with its discovery obligations. It is apparently Complainant's strategy to claim, indefinitely, that it has not received enough information from the Respondent so that Complainant can avoid full disclosure of its final reparations calculation until the final hearing on the merits. Such a strategy is highly prejudicial to the Respondent's defense and must not be permitted.

V. Response to Proposed Case Deadlines

In response to the schedules proposed by Complainant, Respondent proposes the following alternative schedules *in the event that the Administrative Law Judge decides to not determine the availability of reparations prior to further discovery or otherwise prior to a final hearing*.

If the Administrative Law Judge grants the MTC under the circumstances described above, Respondent proposes the following:

August 14, 2026	Complete Fact Discovery
August 14, 2026	Disclosure-Initial Expert Reports
August 21, 2026	Disclosure-Rebuttal Expert Reports
August 28, 2026	Complete Expert Depositions
August 28, 2026	Close of Discovery and Completion of Depositions (if any)
September 11, 2026	Complainant's Brief, Proposed Findings of Fact, and Appendix
October 12, 2026	Respondent's Opposition Brief, Response to Proposed

	Findings of Fact, Proposed Findings of Fact, and Appendix
October 30, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

If the Administrative Law Judge denies the MTC under the circumstances described above, Respondent proposes the following:

August 7, 2026	Disclosure-Initial Expert Reports
August 14, 2026	Disclosure-Rebuttal Expert Reports
August 21, 2026	Complete Expert Depositions
August 21, 2026	Close of Discovery and Completion of Depositions (if any)
September 4, 2026	Complainant's Brief, Proposed Findings of Fact, and Appendix
October 5, 2026	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
October 23, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

WHEREFORE, Respondent, Oak Way Cargo, LLC, respectfully requests that this Commission enter an order: (1) holding that the MTC remains in abeyance, (2) ruling that the issue of whether reparations are available in this case shall be determined as a legal matter before ordering additional discovery on the issue of reparations, and (3) setting forth a briefing schedule on the issue of reparations. Alternatively, if the Administrative Law Judge determines that this case will not proceed as requested above, Respondent, Oak Way Cargo, LLC, respectfully requests that this Commission grant the remaining relief requested by Respondent's Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way2Go Cargo

Corp., and Extend Case Deadlines in accordance with the schedule proposed herein. Respondent further requests that this Commission grant such further relief that the Administrative Law Judge deems appropriate.

Dated: July 27, 2026.

Respectfully submitted,

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Counsel for Respondent, Oak Way Cargo.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e-mail upon the Office of the Secretary at secretary@fmc.gov with a copy to the presiding judge at judges@fmc.gov and served upon all counsel of record for Way 2 Go Cargo Corp., at sarah@epgdlaw.com and jennifer@epgdlaw.com on this 27th day of July, 2026.

By: /s/Ronald R. Hink
Ronald R. Hink